

		action relates to a sexual harassment dispute, the Court finds the arbitration agreement is unenforceable as to the entire case under the EFAA. Notably, the Second Circuit rejected the argument that the EFAA does not apply to retaliation claims because such claims do not fall within the definition of a “sexual harassment dispute.” (Olivieri v. Stifel, Nicolaus & Company, Incorporated (2d Cir. 2024) 112 F.4th 74, 92.) The Olivieri court held the argument was “meritless” under the EFAA’s definition of a “sexual harassment dispute” as “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (Ibid.) As in Olivieri, Plaintiff’s claims of retaliation here relate to conduct that is alleged to constitute sexual harassment. While Olivieri is not binding upon this Court, the Court finds its reasoning to be persuasive. (See also Delo v. Paul Taylor Dance Foundation, Inc. (2023) 685 F.Supp.3d 173, 181 [“there is nothing in the text of the EFAA that suggests its applicability hinges on how a claim is labeled”].) Based on the above, the Court finds that the EFAA applies and renders the arbitration agreement unenforceable. As a result, the Court need not address Amazon’s arguments regarding equitable estoppel, third-party beneficiary standing, alter ego, and agency. The Court also need not address issues of unconscionability. The Court DENIES the Motions to Compel Arbitration. Moving party to give notice
112	Sound-Crete Contractors, Inc. vs. Panku, Inc. 21-01238373	1. Motion for Attorney Fees x 2 Plaintiff Sound-Crete Contractors, Inc. (“Plaintiff”) moves for an order granting \$263,721.67 in attorney fees in favor of Plaintiff Sound-Crete Contractors, Inc. and

		against Defendant 2525 Main Apartment LP (“Defendant”). On 09/03/2026, Plaintiff filed a supplemental request for additional fees incurred for opposing Defendant’s motion for attorney fees. Plaintiff requests an additional \$5,640. Defendant 2525 Main Apartment LP opposes the motion. As reflected in the Court’s Statement of Decision and Judgment following a bench trial, the Court has determined that Plaintiff is the prevailing party and entitled to attorney fees. Specifically, the Court ordered the following in the Statement of Decision that it signed on February 4, 2026: “1. The finds in favor of Sound-Crete. Sound-Crete was damaged in the principal sum of sixty-four thousand and seventeen dollars (\$64,017.00). Sound-Crete is entitled to an award of prejudgment interest owed interest at the legal rate of per annum from the date of June 30, 2021. Sound-Crete is entitled to its statutory costs as the prevailing party, pursuant to a cost bill. The contract contains an attorney’s fees clause. Sound—Crete is awarded its reasonable attorney's fees pursuant to a motion. 2. Sound-Crete shall take nothing RLI Insurance.
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3. 2525 Main shall nothing on its cross-complaint.” (ROA 211 [bold emphasis added].)

The Court also stated the following in its March 19, 2026 Judgment:

“After considering the evidence the Court finds Sound-Crete is the prevailing party on the breach of contract claim. 2525 Main Apartment LP shall pay Sound-Crete, Inc. the sum of \$64,017.00. 2525 Main Apartment shall pay Sound-Crete Constructors, Inc. prejudgment interest at the annual rate of 10% from June 30, 2021 (30 days after the invoice) in the amount of \$29,377.66. The Court does not find there was a wrongful withholding. Therefore, the Court is not awarding statutory penalties under Civil Code sec. 8818 and Business and Professions Code section 7108.5.

Sound-Crete Contractors, Inc. shall recover nothing from RLI Insurance Company.

2525 Main Apartment LP shall recover nothing from Sound-Crete Contractors, Inc.” (ROA 251.)

Given the above, the Court has already determined that Plaintiff is entitled to attorney fees pursuant to contract. (Code Civ. Proc., § 1032 and Civ. Code, § 1717.) The Court also determined that it would not impose statutory penalties under Civil Code sec. 8818 and Business and Professions Code section 7108.5 against Defendant.

Now, the Court must determine Plaintiff’s reasonable attorney fee award.

		The moving party plaintiff bears the burden of showing that the fees incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34; Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.) “To determine a reasonable attorney fee award, the trial court applies the lodestar method.” (Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691.) “[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were ‘reasonably spent’ on the litigation” [citation], and to determine the hourly rates that should be used in the lodestar calculus.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 35, as modified (Oct. 11, 2019).) Courts shall consider the following factors in determining whether the time expended and fees requested are reasonable: “the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 [“These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.”].) “[A] reasonable hourly rate is the product of a multiplicity of factors the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.’
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” (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 272.)

The Court can also reduce the fees requested for block billing that “obscured the nature of some of the work claimed,” vague entries, and duplicative billing. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1324; see also Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 280.) “Block billing occurs when ‘a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.’ ” (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 279.)

For example, “counsel may not submit a plethora of noncompensable, vague, block-billed attorney time entries and expect particularized, individual deletions as the only consequence.” (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 280 [citing Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1329].) “It is the obligation of the party (and attorney) seeking the fee award “to prune the fee request to comply with the law,” and the party (and attorney) cannot “transfer that responsibility onto the trial court.” (Ibid.)

“If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 36, as modified (Oct. 11, 2019).)

“The reasonable hourly rate is that prevailing in the community for similar work.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th

		1147, 1157.) “The relevant “community” is generally based on where the services are rendered, i.e., where the court is located.” (Ibid.) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County.” (Ibid.) In considering whether to apply a multiplier (positive or negative) the court should conder the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41.) Here, Plaintiff seeks \$263,721.67 in attorney fees. The evidence submitted in support of this motion is unorganized and problematic. For example, there are three different declarations that seek three different amount of attorney fees – the total of the amounts identified in the three declarations does not amount to the \$263,721.67 in fees requested in the motion. For example, in one declaration dated 04/16/2026, David Brault seeks \$132,577.50 in attorney fees for 241.05 hours at \$550 per hour. (See Declaration of David Brault, ¶ 8.) In a second declaration, dated 03/31/2026, David Brault seeks \$197,194.34 in attorney fees for 379.22 hours of work at \$520/hour. In a third declaration, dated 04/15/2026, Atkinson, Adelsen, Loya, Rudd & Romo
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seeks \$124,021.67 in attorney fees for a total of 208.8 hour of work.

The total fees sought appear to be from adding the \$132,577.50 in attorney fees worked up by David Brault, the \$124,021.67 in attorney fees worked up by Atkinson, Adelsen, Loya, Rudd & Romo, and the \$7,122.50 in expected future fees.

As such, the motion is DENIED to any fees sought in the Declaration of David Brault that is dated 03/31/2026 and seeks \$197,194.34 in attorney fees for 379.22 hours of work at \$520/hour.

Next, the Declaration of Anthony Niccoli of Atkinson, Adelsen, Loya, Rudd & Romo, dated 04/15/2026 fails to establish that the fees sought are reasonable. The declaration provides no information as to the hourly rates that the attorneys applied and also fails to provide the experience of the attorneys that would justify that hourly rate – other than the experience of the declarant Anthony Niccoli. Anthony Niccoli provides his experience but provides no information regarding the six other individuals for whose work attorney fees are sought. As such, the Court will NOT award fees for the six other individuals.

Declarant appears to have worked on this case for 132.2 hour and seeks an hourly rate of \$615, \$700, and \$800 depending on the invoice – although Declarant provides not information as to when or why the hourly rates differ between invoices. The Court finds this hourly rate unreasonable, especially when considering the hourly rate by co-counsel David Brault. As such, the Court will reduce the hourly rate to \$520/hour.

		The Court finds that the work performed by Anthony Niccoli was reasonable except approximately .6 hours of his entries were not reasonable in that the task completed did not require the skill of someone charging \$520/hour and was secretarial in nature.⁴ The Court will deduct .6 hours from the 132.2 hour sought. As such, the Court GRANTS the motion as to the fees sought by Atkinson, Adelsen, Loya, Rudd & Romo in the amount of \$68,432.00 (131.6 hours at \$520/hour).⁵ Moving to the fees sought by David Brault. The Court finds, after considering both declarations filed by David Brault, that Brault's hourly rate should be \$520/hour. Again, Brault states that he performed 241.05 hour of work on this case. The Court finds that the work performed by Brault is generally reasonable. The Court deducts 4.5 hours for vague entries and block billing. The Court also deducts 2.35 hours form the total performed because the tasks performed do not beckon a \$520 hourly rate. The Court will apply a \$50 hourly rate for these hours. In sum the Court GRANTS the attorney fees requested by David Brault in the amount of \$121,901.50 (\$121,784.00 [234.20 hours at \$520/hour] plus \$117.50 [2.35 hours at \$50/hour]). The Court also GRANTS \$5,720 in attorney fees for 11 hours at \$520/hour for the preparation of this motion, the opposition to the motion for a new trial, the reply to this motion as well as the cost to attend the hearings on the motions, which were incurred
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	after the final invoice provided with the moving papers. Last, Court will award 6 hours at \$520/hour for the additional fees incurred in opposing Defendant’s motion for attorney fees, for a total of \$3,120. In sum the Court GRANTS the motion and AWARDS \$68,432.00 in attorney fees for the work performed by Atkinson, Adelsen, Loya, Rudd & Romo. The Court GRANTS the motion and AWARDS \$130,741.50 in attorney fees for the work performed by David Brault (\$121,901.50 + \$5,720 + \$3,120). Plaintiff to give notice Note: The Court is willing to continue the hearing on this motion to allow the moving party to better prove the reasonableness of the fees sought – particularly those sought by Atkinson, Adelsen, Loya, Rudd & Romo in the declaration dated 04/15/2026. This motion is unorganized and lacks information about the attorneys/staff who worked on the case, so the moving party has not carried its burden to establish the reasonableness of the fees. 2. Motion to Tax Costs Plaintiff Sound-Crete Contractors, Inc. moves to strike \$14,2025.43 in costs from Defendant RLI Insurance Company’s Memorandum of Costs. Defendant RLI Insurance Company filed a Memorandum of Costs, seeking \$14,700.60 in costs. (See ROA 297.)
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	Specifically, Plaintiff moves to tax the following costs, which totals \$14,2025.43: Item 1: Motion and Filing Fees \$286.88 Item 4: Deposition Costs \$11,276.56 Item 5: Service of Process \$1,440.66 Item 13: Models, enlargements, etc. \$540.56 Item 15: Other \$705.75 Defendant RLI Insurance Company (Defendant RLI”) opposes the motion. Plaintiff does not dispute that Defendant RLI Insurance Company is the prevailing party for the issues between Plaintiff and Defendant RLI. (See Code Civ. Proc., § 1032, subd. (a)(4) and ROAs 211 [“Sound-Crete shall take nothing RLI Insurance.”] and 251 [“Sound-Crete Contractors, Inc. shall recover nothing from RLI Insurance Company.”].) Plaintiff argues, however, that the costs included on the Memorandum of Costs were incurred by non-prevailing party 2525 Main Apartment – not Defendant RLI . Defendants RLI and 2525 Main Apartment were represented by the same counsel at trial. Plaintiff cites to Charton v. Harkey (2016) 247 Cal.App.4th 730 and Quiles v. Parent (2018) 28 Cal.App.5th 1000 in support of its motion. In opposition, Defendant RLI argues Charton abolished the “unity of interest” exception, holding that the 1986 repeal and reenactment of §1032 left “no discretion to deny prevailing party status to a party who meets the statutory definition,” and “eliminated any basis to apply the unity of interest exception.” Defendant also argues that the costs incurred were the ordinary, enumerated costs of litigation, presumptively necessary, and Sound-
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		Crete has offered no evidence to rebut that presumption. Code of Civil Procedure section 1032 defines the prevailing party as follows: “ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).) Defendant RLI is a “a defendant where neither plaintiff nor defendant obtains any relief” and is therefore a prevailing party entitled to costs. In <i>Charton v. Harkey</i> (2016) 247 Cal.App.4th 730, the Court addresses whether a prevailing co-Defendant could recover costs when the co-Defendant “was united in interest and shared costs with other defendants who did not satisfy the statutory definition.” (<i>Charton v. Harkey</i> (2016) 247 Cal.App.4th 730, 734.) The court held that the co-Defendant was “entitled to recover costs as a matter of right” despite its unity of interests with non-prevailing defendants. (<i>Ibid.</i>) Still, however, <i>Charton</i> also held that courts are permitted to “deny some or all of the costs [prevailing co-defendant] sought because [prevailing co-defendant] did not incur the costs for [its] own benefit and were not reasonably necessary to the conduct of [its] defense.” (<i>Id.</i>, p. 743.)
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“[A]ll costs awarded to a prevailing party must be incurred by that party, must be ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation,’ and must be reasonable in amount.” (Charton v. Harkey (2016) 247 Cal.App.4th 730, 743 [citing Code Civ. Proc., § 1033.5, subd. (c)(1)-(3)].)

“When a prevailing party has incurred costs jointly with one or more other parties who are not prevailing parties for purposes of an award of costs, the judge must apportion the costs between the parties’ [based on the reason the costs were incurred and whether they were reasonably necessary to the conduct of the litigation by the jointly represented party who

prevailed].” (Charton v. Harkey (2016) 247 Cal.App.4th 730, 743–744.)

As discussed above, Defendant RLI is a “a defendant where neither plaintiff nor defendant obtains any relief” and is therefore a prevailing party entitled to costs that were for its own benefit and reasonably necessary to the litigation of its defense.

Defendant RLI’s involvement in the case is limited and the Court determined the following:

2525 Main procured a mechanic's' lien release bond from RLI Insurance, transferring Sound- Crete's claim from the property to the bond.

This bond was secured by RLI in order to release the lien that Sound-Crete recorded on Defendant 2525 Main’s property.

The Court is persuaded by Plaintiff’s argument that the costs discussed in the motion were not reasonably necessary to the conduct of Defendant RLI’s defense.

		The motion is GRANTED. The Court STRIKES \$14,2025.43 of Defendant RLI's costs from the Memorandum of Costs as follows: Item 1: Motion and Filing Fees \$286.88 Item 4: Deposition Costs \$11,276.56 Item 5: Service of Process \$1,440.66 Item 13: Models, enlargements, etc. \$540.56 Item 15: Other \$705.75 Plaintiff to give notice.
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